

8.	24CV1319	EL DORADO HILLS CSD vs. VAN PATTEN ET AL
Permanent Injunction/Declaratory Relief		

Defendants own a recreational vehicle (“RV”) that is parked on their property, and their property is subject to CC&R restrictions that limit the parking and storage of such vehicles.

District’s Enforcement Authority

The Plaintiff is the El Dorado Hills Community Services District (“Plaintiff” or “District”), which, as a community district formed pursuant to state law, is empowered by law to enforce the Covenants, Conditions and Restrictions (“CC&Rs”) for housing tracts within the District.

Government Code § 61105, which supercedes Government Code § 61601.10, carries forward the District’s authority to enforce CC&Rs for housing tracts within its boundaries.¹ UMF No. 7. Defendants’ property is located within “Franciscan Village Unit 1”, and as such, is subject to the following restriction:

No boats, boat trailer, house trailer, recreation vehicles, or other vehicles shall be regularly parked on any street, upon any driveway, or upon any lot unless they are to the rear of the front set-backlines behind a suitable fence, or in an enclosed garage or carport, or so as to be not visible from any street, road or drive which provides access to any other dwelling or place. Offending vehicles may be towed away at owner’s expense.

UMF No. 1-3, 5-6.

The District claims authority to open a code enforcement case and follow a “CC&R Enforcement Process” set forth in the District’s Policy Guide. Policy Guide Series 7010; UMF No. 8.

From the Court the District seeks summary judgment of its entitlement to a preliminary and permanent injunction and declaratory relief that would allow the District to enter Defendants’ property and remove the offending vehicle at Defendants’ expense.

Request for Judicial Notice

Plaintiff requests the Court to take judicial notice of certain recorded deeds and the Statement of Vote resulting from the November, 1983 election, as well as a Google Maps image of Defendants’ property. Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code

¹ Government Code § 61105(e): The . . . El Dorado Hills Community Services District, . . . , which enforced covenants, conditions, and restrictions prior to January 1, 2006, pursuant to former . . . Section 61601.10, may continue to exercise the powers set forth in . . . former Section 61601.10.

Sections 451, 452, and 453 collectively govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which may be judicially noticed. A trial court is required to take judicial notice of any matter listed in section 452 if a party requests it and gives the other party sufficient notice to prepare to meet the request. Evidence Code § 453. Evidence Code § 452 lists matters of which the court may take judicial notice.

Evidence Code § 452(b) authorizes the court to take judicial notice of “regulations and legislative enactments issued by or under the authority of the of the United States or any public entity in the United States.”

Evidence Code § 452(c) allows the court to take judicial notice of “official acts of the legislative, executive and judicial departments of the United States and of any state of the United States.”

These Evidence Code sections require the Court to take judicial notice of the recorded Deeds (Items 1 and 3) and of legislative enactments (Item 4), but not of Google map screenshots. Accordingly, Plaintiff’s request for judicial notice is granted as to Items 1, 3 and 4, but not of Item 2.

Factual Background

After receiving a complaint in 2022, the District initiated an enforcement process that resulted in a lengthy series of inspections, notices, meetings and hearings that continued through 2024, but failed to resolve the issue. UMF Nos. 12-41.

Early on Defendants took the position that the CC&Rs required that either the vehicle be parked “behind a suitable fence,” or that it be located “in an enclosed garage or carport, or so as to be not visible from any street, road or drive which provides access to any other dwelling or place.” UMF No. 34. Given that the vehicle is parked behind a fence, it is Defendants’ position that they are in compliance with the restriction.

Defendants have made efforts during the pendency of this dispute to address the visibility of the vehicle over the top of their fence by installing landscaping to shield the view, but Plaintiff takes the position that these efforts have not met the requirements of the CC&Rs. Material Fact Nos. 42-43, 45. Defendants argue that the photographs Plaintiffs have submitted to show that the vehicle is still visible are not taken “from the street” and as such do not have evidentiary value in determining whether Defendants are in violation of the CC&Rs. Material Fact Nos. 45-46.

The District maintains that removal of the offending vehicle is the only solution, whereas Defendants assert that the District has allowed other neighbors to install lattice or increase the height of their fence in order to block the view.¹

Standard for Summary Judgment

[S]ummary judgment or summary adjudication is to be granted when there is no triable issue of material fact and the moving party is entitled to judgment as a matter of law.” (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 894–895, 83 Cal.Rptr.3d 146.) The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 861–862, 107 Cal.Rptr.2d 841, 24 P.3d 493.)

“A defendant seeking summary judgment bears the initial burden of proving the cause of action has no merit by showing that one or more of its elements cannot be established or there is a complete defense to it.... [Citations.]” (*Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1037, 128 Cal.Rptr.2d 660.)

Alvarez v. Seaside Transportation Servs. LLC, 13 Cal. App. 5th 635, 641–42, 221 Cal. Rptr. 3d 119, 124–25 (2017)

We accept as true the facts in the evidence of the party opposing summary judgment and the reasonable inferences that can be drawn from them, viewing the evidence in the light most favorable to the opposing party, and liberally construing that party's evidentiary submissions, while strictly scrutinizing the moving party's evidence. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 253–254, 100 Cal.Rptr.3d 296.) “[A]ny doubts about the propriety of summary judgment must be resolved in favor of the opposing party.” (*Richards v. Sequoia Ins. Co.* (2011) 195 Cal.App.4th 431, 435, 124 Cal.Rptr.3d 637.) We consider “all the evidence set forth in the moving and opposing papers except that to which objections were made and sustained.” (*Grossman v. Santa*

¹ The District objects to the Declarations of Erik and Bianca Wittenberg for relevance, lack of foundation and lack of personal knowledge. The Court sustains the objection as to Paragraph 8 of the Declaration (“We are aware of the conflict between Van Pattens and CSD, and the plantings installed by them to shield their RV from street view.”), and overrules the Objection as to the rest of the Declaration. The District objects to the Declaration of Jennifer and David Moore for relevance, lack of foundation and lack of personal knowledge. The Court overrules these objections, except that the objection is sustained as to Paragraph 10 (“We are aware of the conflict between the Van Pattens and CSD.”). The District further objects that the document referenced in Paragraph 9 of the Declaration, and is said to be attached, is not authenticated or attached. This objection is sustained. Finally, the District objects to the reference to the Minutes of the District Board of Directors as hearsay. This objection is overruled because the referenced document meets the requirements of the official records exception to the hearsay rule. Evidence Code § 1280.

Monica-Malibu Unified School Dist. (2019) 33 Cal.App.5th 458, 465, 245 Cal.Rptr.3d 205 (Grossman).)

Zaragoza v. Adam, 109 Cal. App. 5th 113, 118 (2025).

Interpretation of the CC&R Restriction

An initial question is the interpretation of Section 11 of the Franciscan Village Declaration, quoted above. District cites the interpretation of its “Policy Guide Series 7000-CC&Rs, a document adopted by the Board of Directors of the El Dorado Hills Community Services District (“Board”) “to guide future boards, advisory committees, and staff.” With respect to Section 11, the Policy Guide Series concludes that:

When the foregoing restrictions are read in connection with the restriction which requires that any parking or storage of vehicles on areas of the lot other than in a garage or on an approved driveway surface to be a location behind a suitable fence so as not to be visible from the street, the most reasonable interpretation of the CC&Rs, as a whole, is that parking and storage of vehicles . . . should be completely out of view if the vehicle or property cannot be stored in the garage or on the driveway.

Section 7015.80.

This is facially in conflict with Section 7000.10 (“General Guideline”) of the same document, which states that: “For purposes of design review, decisions will be based on the plain language set forth in the CC&R's applicable to the subject property. . . . The Design Review Policy and Guideline Manual shall in no manner establish new CC&R language, which has not been approved by the property owners as required by the relevant CC&R's.” Section 11 does not say, as it is quoted in the Policy Guide, that the CC&Rs require a vehicle to be parked “on areas of the lot other than in a garage or on an approved driveway surface to be a location behind a suitable fence so as not to be visible from the street.” Rather, it says that such vehicles must be parked: “behind a suitable fence, or in an enclosed garage or carport, or so as to be not visible from any street.”

The language of the proposition submitted to the ballot by Resolution 83-7 defined the Board’s authority:

Shall the El Dorado Hills Community Services District be authorized to *enforce* the covenants, conditions, and restrictions adopted for each tract within the boundaries of the District, and to assume the duties of the architectural control committee for each tract within the boundaries of the district (*to the extent authorized by the covenants, conditions, and restrictions applicable to the tract*), for the purpose of maintaining uniform standards of development within the District, as adopted in the covenants, conditions, and restrictions

Request for Judicial Notice, Exhibit 4.

Section 21 of the CC&Rs provides that the deed restrictions “may be terminated or modified at any time by the agreement of the owners of a majority of all acreage in El Dorado Hills. They may also be modified by agreement between Grantor and the owners of record of a majority of the land area conveyed by his Deed. Any such agreement must be in writing and be duly recorded in the official records of El Dorado County to be effective.” Request for Judicial Notice, Exhibit 3.

While the Board may have authority to enforce the CC&R requirements and adopt policies to guide their enforcement, it does not have the authority to rewrite them through the adoption of enforcement policies.

Section 19.b of the CC&Rs, which defines the authority of the Architectural Control Committee, and by extension the authority of the Board, states: “the Committee shall not arbitrarily or unreasonably withhold its approval or any plans or requests submitted to it pursuant hereto.” Id.

Material Issues of Fact

Even if this motion could not be resolved by the plain language of the CC&R and the limitations of the District to interpret them in a manner that departs from that plain language, there remains a central issue of fact which is glaringly in dispute: is the vehicle visible “from the street?” Defendants assert that the photos submitted on this issue by the District are taken from a vantage point that is not “from the street.” The Moore and Witteneberg Declarations state that the vehicle at issue is “not visible.”

In the context of this motion it is not an issue that can be resolved by the Court, which has no ability to determine the position from which the images were taken. The parties’ evidentiary submissions differ on this point. In the context of a summary judgment motion, the Court is bound to “accept as true the facts in the evidence of the party opposing summary judgment and the reasonable inferences that can be drawn from them, viewing the evidence in the light most favorable to the opposing party, and liberally construing that party’s evidentiary submissions, while strictly scrutinizing the moving party’s evidence.” Zaragoza v. Adam, 109 Cal. App. 5th 113, 118 (2025) (citations omitted).

There is an additional factual issue of whether the District’s enforcement actions were in violation of the CC&R Section 19.b as “arbitrary and capricious” in that similarly situated property owners were allowed to park vehicles on their property through approval of mitigation measures that increased the height of the visual barrier above the standard six-foot fence height.

Accordingly, the Court need not resolve whether the standard for injunctive relief is met when the fact of whether a public nuisance exists remains fundamentally in dispute.

TENTATIVE RULING #8:

- 1. PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE IS GRANTED AS TO ITEMS 1, 3 AND 4, BUT NOT OF ITEM 2.**
- 2. PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION, IS DENIED.**

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.